

**BEFORE THE
FEDERAL MARITIME COMMISSION**



**MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,**

Vs.

**MAERSK LINE A/S,
JOHN DOES,
Respondent.**

*
*
*
*
*
*
*

CASE #:

Docket No. 20-17

COMPLAINT

COMES NOW Marie Carew d/b/a/ Holiday Shipping, LLC, and pursuant to 46 USC § 41102 and 46 CFR § 545.4, files this petition against Respondent, Maersk Line A/S, over the handling, storing, and delivering of individual containers, *to wit*: SUDU6808042; MSKU8180603; MSKU8445214; MRKU6064475, and respectfully shows as follows:

Jurisdiction and Venue

1.

Complainant brings this action under the Shipping Act of 1984, (46 USC §§ 40101-41309), and as amended (the "Act"), and in conformity with the Final Rule on Demurrage and Detention under the Shipping Act of 2020, as recorded in the Federal Register, Vol. 85, No. 96 of May 18, 2020.

2.

Complainant, Marie Carew d/b/a/ Holiday Shipping, LLC is a Georgia limited liability company, registered with the Federal Maritime Commission as an Ocean Transportation Intermediary License Non-Vessel-Operating Common Carrier No. 019138N.

3.

Respondent, Maersk Line A/S, is a foreign corporation and manages a fleet of vessels off the continental US ports. Process and the herein Complaint, if demanded, shall be delivered with its registered agent, CT Corporation System at 289 S. Culver Street, Lawrenceville, Georgia 30046-4805.

4.

Respondents, John Does, are individual(s) or organization(s) that are consignees under the various containers referenced in the herein petition, individual(s) or organization(s) who have

retained the services of Plaintiff to perform ocean freight services and in who the titles to the consignments lie. The Complainant may interplead each of these individual(s) or organization(s).

5.

The underlying action arises from the continued retention of the various containers referenced in the herein petition for the demurrage and detention fee that Respondent claims, which is a violation of the Commissioner's interpretation of 46 USC § 41102(c) and 46 CFR § 545.4(d).

6.

This Commission has personal and subject matter jurisdiction over these controversies pursuant to the Shipping Act of 1984 (46 USC §§ 40101-41309), and as amended (the "Act"). The venue is proper before the Commission.

Alleged Facts

7.

Complainant incorporates by reference paragraphs 1 through 6 of her Complaint as if fully set forth herein.

8.

On or around July 20, 2017, Complainant contracted Respondent for consignment SUDU6808042, and on behalf of one Agbai Ukaku Efere, listed as Consignee on B/L #: 965477262. The consignment includes used 2003 Mercedes Benz C230; 2008 Lexus RX350; 2006 Toyota Highlander; and 2008 VW Passat. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee of \$6,720.00, which, according to Respondent, was for thirty-eight (38) days of demurrage at USSAVGC from 07/15/2018 to 09/10/2018. Each of these days, for which Respondent charges demurrage, the consignment was with the Department of Customs and Border Patrol (CBP).

9.

Complainant contracted Respondent for consignment MSKU 8180603, and on behalf of one Mathias Otubo, listed as Consignee on B/L #: 965544009. The consignment includes used 2005 Toyota 4 Runner; 2005 Toyota 4 Runner; and 2004 Toyota Sienna. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee for demurrage

and detention. The consignment was with the Department of Customs and Border Patrol (CBP) for each of the days that Respondent charges demurrage and detention.

10.

Complainant contracted Respondent for consignment MSKU 8445214, and on behalf of one Austin Shonaïke, listed as Consignee on B/L #: 965751148. The consignment includes used 2003 Honda Accord; 2005 Ford Escape; and 2003 Acura MDX. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee of \$5,280.00, which, according to Respondent, was for thirty (30) days of demurrage at USSAVGC from 08/06/2018 to 09/04/2018. Each of these days, for which Respondent charges demurrage, the consignment was with the Department of Customs and Border Patrol (CBP).

11.

Complainant contracted Respondent for consignment MSKU 6064475, and on behalf of one Soyinka Samson Abayomi, listed as Consignee on B/L #: 965885829. The consignment includes used 2003 Toyota Sequoia; 2007 Nissan Murano; and 2003 Toyota RAV4. Respondent demanded and received payment for freight. Notwithstanding, Respondent claims an additional fee for demurrage and detention. The consignment was with the Department of Customs and Border Patrol (CBP) for each of the days that Respondent charges demurrage and detention.

12.

For each of these consignments, Respondent escalated the demurrage and detention while the consignments were undergoing government inspection, and without extenuating circumstances. Thus, the Respondent policy is unreasonable and punitive.

13.

The Complainant or the Consignees did not have the means to mitigate the damages due to the demurrage and detention while the consignments were undergoing government inspection. Thus, the Respondent policy is unreasonable and punitive.

14.

For each of these consignments, Respondent did not cap the amount of damages imposed for demurrage and detention while the consignments were undergoing government inspection, and without extenuating circumstances. Thus, the Respondent policy is unreasonable and punitive.

Request for Relief

15.

Complainant incorporates by reference paragraphs 1 through 14 of her Complaint as if fully set forth herein.

16.

Complainant requests that Respondent be required to answer the charges made in the herein Complaint, that, after a hearing, the Commission mandates Respondent: (1) to release the consignments in its possession immediately; (2) to cease and desist from further violation of the Shipping Act; (3) to put in place lawful and reasonable practices; (4) to indemnify Complainant for all damages from actions of Consignees, including its attorney's fees and with interest; (5) for any other damages and sums that the Commission determines to be proper; and (6) that the Commission make any further orders as it determines to be appropriate.

Request for Oral Hearing

17.

Complainant incorporates by reference paragraphs 1 through 16 of her Complaint as if fully set forth herein.

18.

Complainant now seeks an oral hearing on each of these allegations and requests that the hearing takes place in Atlanta, Georgia.

WHEREFORE, Complainant demands that the Commission gives judgment in her favor and against the Respondent for all damages, and cast the cost of the herein action upon Respondent.

Respectfully submitted,

/s/ Yinka Omole

Yinka T. Omole, Esquire
Attorney for Complainant
Georgia Bar #: 553795

Post Office Box 18339
Atlanta, Georgia 30316
PH (404)624-3011
FX (404)624-3012
ylawfirm@gmail.com

BEFORE THE
FEDERAL MARITIME COMMISSION

MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,

Vs.

MAERSK LINE A/S,
JOHN DOES,
Respondent.

*
*
*
*
*
*
*
*

CASE #:

Verification

The undersigned verifies that the facts asserted in the preceding Complaint are true and correct to the best of her knowledge.

This 9th day of October, 2020.

Marie Carew
Marie Carew

BEFORE THE
FEDERAL MARITIME COMMISSION



MARIE CAREW d/b/a/ HOLIDAY SHIPPING,
Complainant,

Vs.

MAERSK LINE A/S,
JOHN DOES,
Respondent.

*
*
*
*
*
*
*
*

CASE #:

Docket No. 20-17

ENTRY OF APPEARANCE

PLEASE NOTE the entry of appearance of Yinka T. Omole as the attorney of record for Complainant Marie Carew d/b/a/ Holiday Shipping. Undersigned attorney hereby requests that all copies of all court notices, calendars, etc. in the above-numbered case be sent to him at the address below.

This 9th day of October, 2020.

Respectfully submitted,

/s/ Yinka Omole

Yinka T. Omole, Esquire
Attorney for Complainant
Georgia Bar #: 553795

Post Office Box 18339
Atlanta, Georgia 30316
(404) 624-3011
ylawfirm@gmail.com